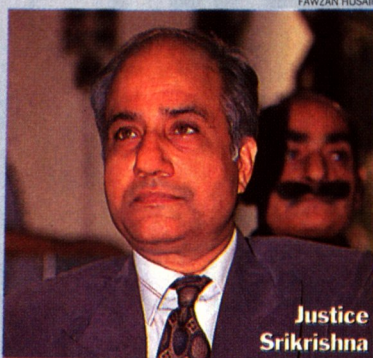


is, therefore, aggressively using the report as a counterpoint. It is only communalising the polity."

With Maharashtra slated to go for polls in another two years, the 16 per cent Muslim votebank is what none of the political parties want to compromise on. The riots report has already become a campaign manifesto for all the parties. While the Congress is seen appeasing the minority, the saffron alliance is set to stoke the Hindutva angle. So, as Chief Minister Vilasrao Deshmukh makes periodic trips to 10 Janpath seeking advice on the report, the party is trying hard to redeem itself in the eyes of its Muslim votebank. In fact, party president Sonia Gandhi assured a parliamentary committee meeting in Delhi on Tuesday that the recommendations of the report will be implemented and that "definitive action" will be taken on the findings of the commission. The BJP and Shiv Sena, on the other hand, have already given the Government an ultimatum that they will take to the streets if the report is implemented. Asks Shiv Sena Executive President, Uddhav Thackeray, "Why do they want a retrial after people have been tried and the case has been closed? What is the need to reopen old wounds? If the Congress uses this report to appease to the Muslims, who will stand up for the Hindus? We will have to raise the Hindutva plank again."

And as Justice for All, a human rights group, begins an online campaign to pressure the state Government to implement the report, the going seems to be a little tough. The report recommends action against 31 policemen but advocates no action against the politicians involved in the riots though it does mention their names. The rest of the 25 recommendations concentrate on improving the image and the efficiency of the state's police force, instead of punishing those involved in the 1993 riots. The commission wants improved housing conditions for police personnel, efficiency in investigations and uprooting of corruption from the state's police force. After the report was submitted in 1998, the then state home minister Gopinath Munde was

THE REPORT WANTS...



Justice Srikrishna

- Frequent and strict inspections of police stations.
- Registration of crime in unarbitrary manner.
- Methodical and meaningful investigations.
- Proper documentation of the work police do.
- Strict punishment for defaulting police personnel.
- Avoiding frequent transfers and administrative hurdles.
- Seniors leading by example.
- Keeping a check on personnel against corruption.
- Timely trial of cases.

AND THE ACCUSED ARE...

Bal Thackeray

Charges (verbatim): Inciting Hindus against Muslims; organising attacks on Muslims.

Impact: Can be charged with fanning communal riots attracting a punishment of 2-5 years.

Madhukar Sarpotdar

Charges (verbatim): Possessing unlicensed weapons.

Impact: Has been acquitted by the TADA court.

R.D. Tyagi, then police commissioner

Charges (verbatim): Guilty of unnecessary and excessive firing, killing nine Muslims.

Impact: Is facing enquiry.

quick to submit an Action Taken Report (ATR) based on the recommendations. No action was taken against the errant politicians.

If the report has to be implemented now, investigations would have to be carried out in cases that are as old as 14 years. Although Deshmukh says it is "the police's job to investigate", the cops too may find going over the decade old evidence and witnesses exhausting. Meanwhile, the Government has set up another investigative cell pertaining to the report. Though the cell won't reopen any of the closed cases, it will reinvestigate those cases that were registered but were never investigated by the police for reasons unknown.

In 2000, the state had formed a Special Task Force (STF) as the prosecuting agency for the report. Later, the investigations were handed over to respective police stations, overlooked by STF. Now the recently-formed special cell will carry on further investigations separately into the riot cases "that went unnoticed by STF," says Mumbai Police Commissioner D.N. Jadhav. The state will also seek the formation of a special court to try the cases. However, the cases which have already been judged, will not be reopened. According to Jadhav, 7,600 people were arrested in connection with the riots and over 2,270 cognisable offences were registered, of which 1,375 cases are "true but still undetected". Charge-sheets were filed in only 894 cases.

Whether the report will be implemented or swept under the carpet, as successive governments have done over the past nine years, is a question that will have to await an answer. "Even in 1999, Sharad Pawar had called a meeting of Muslims and assured them that if his party was elected, the report will be implemented within three months of coming to power. The party came to power, but the assurance still remains," recounts Islamic scholar Asghar Ali Engineer. All political parties seem to have perfected the art of keeping the report and its implementation hanging, so that they can capitalise on it during election time. Each party, for now, has its side of the rope to handle. And the tug of war begins.